

ONE

INTRODUCTION

THE PROBLEM

This book is about the phenomenal growth of California's state prison system since 1982 and grassroots opposition to the expanding use of prisons as catchall solutions to social problems. It asks how, why, where, and to what effect one of the planet's richest and most diverse political economies has organized and executed a prison-building and -filling plan that government analysts have called "the biggest . . . in the history of the world" (Rudman and Berthelsen 1991: i). By providing answers to these questions, the book also charts changes in state structure, local and regional economies, and social identities. *Golden Gulag* is a tale of fractured collectivities—economies, governments, cities, communities, and households—and their fitful attempts to reconstruct themselves.

The book began as two modest research projects undertaken in Los Angeles in 1992 and 1994 on behalf of a group of mostly African American mothers, many of whom later rode the bus depicted in the Prologue. All wished to understand both the letter

and intent of two California laws—the Street Terrorism Enforcement and Prevention (STEP) Act (1988) and Proposition 184, the “three strikes and you’re out” law (1994). They asked me, a nonlawyer activist with research skills, access to university libraries, and a big vocabulary, to help them. The oral reports and written summaries I presented at Saturday workshops failed to produce what we hoped for: clues as to how individual defendants might achieve better outcomes in their cases. Rather, what we learned twice over was this: the laws had written into the penal code breathtakingly cruel twists in the meaning and practice of justice.

Why should such discoveries surprise people for whom racism and economic struggle are persistent, life-shortening aspects of everyday experience? Perhaps because, for an increasing number of people, by the early 1990s, everyday experience had come to include familiarity with the routines of police, arrests, lawyers, plea bargains, and trials. The repertoire of the criminal courts seemed to be consistent if consistently unfair, with everyone playing rather predictable roles and the devil (or acquittal) in the details. But instead of showing how to become more detail-savvy about a couple of laws, our group study shifted our perspective by forcing us to ask general—and therefore, to our general frustration, more abstract—questions: Why prisons? Why now? Why for so many people—especially people of color? And why were they located so far from prisoners’ homes?

The complex inquiry we inadvertently set for ourselves eventually defined the scope of this book, whose tale unfolds four times: statewide; at the capitol; in rural Corcoran; and in South Central Los Angeles. Working through California’s prison development from these various “cuts” will uncover the dynamics of

the social and spatial intersections where expansion emerged. There's a political reason for doing things this way. It is not only a good theory in theory but also a good theory in practice for people engaged in the spectrum of social justice struggles to figure out unexpected sites where their agendas align with those of others. We can do this by seeing how general changes connect with concrete experiences—as the mothers did in our study groups.

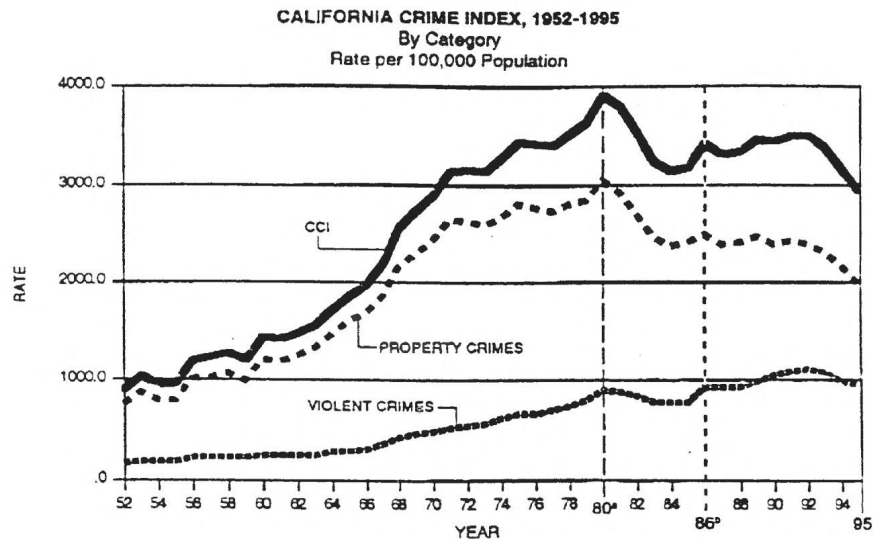
The California state prisoner population grew nearly 500 percent between 1982 and 2000, even though the crime rate peaked in 1980 and declined, unevenly but decisively, thereafter (see figs. 1 and 2). African Americans and Latinos comprise two-thirds of the state's 160,000 prisoners; almost 7 percent are women of all races; 25 percent are noncitizens. Most prisoners come from the state's urban cores—particularly Los Angeles and the surrounding southern counties. More than half the prisoners had steady employment before arrest, while upwards of 80 percent were, at some time in their case, represented by state-appointed lawyers for the indigent. In short, as a class, convicts are deindustrialized cities' working or workless poor.

Since 1984, California has completed twenty-three major new prisons (see map), at a cost of \$280–\$350 million dollars apiece. The state had previously built only twelve prisons between 1852 and 1964. The gargantuan new poured-concrete structures loom at the edge of small, economically struggling, ethnically diverse towns in rural areas. California has *also* added, in similar locations, thirteen small (500-bed) community corrections facilities, five prison camps, and five mother-prisoner centers to its pre-1984 inventory. By 2005, a hotly contested twenty-fourth new prison, designed to cage 5,160 men will, if opened, bring the total num-

California Department of Justice • Criminal Justice Information Services Division
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CRIME AND DELINQUENCY IN CALIFORNIA. 1995 ADVANCE RELEASE



*Since 1980 marked a high point for the California Crime Index, it has been compared to 1995 in this publication.

**Violent crime has increased 7.2 percent in rate since 1980. Part of the increase is due to a 1986 law change which required reporting domestic violence as criminal conduct. This resulted in an increase in the aggravated assault offense category.

From 1994 to 1995:

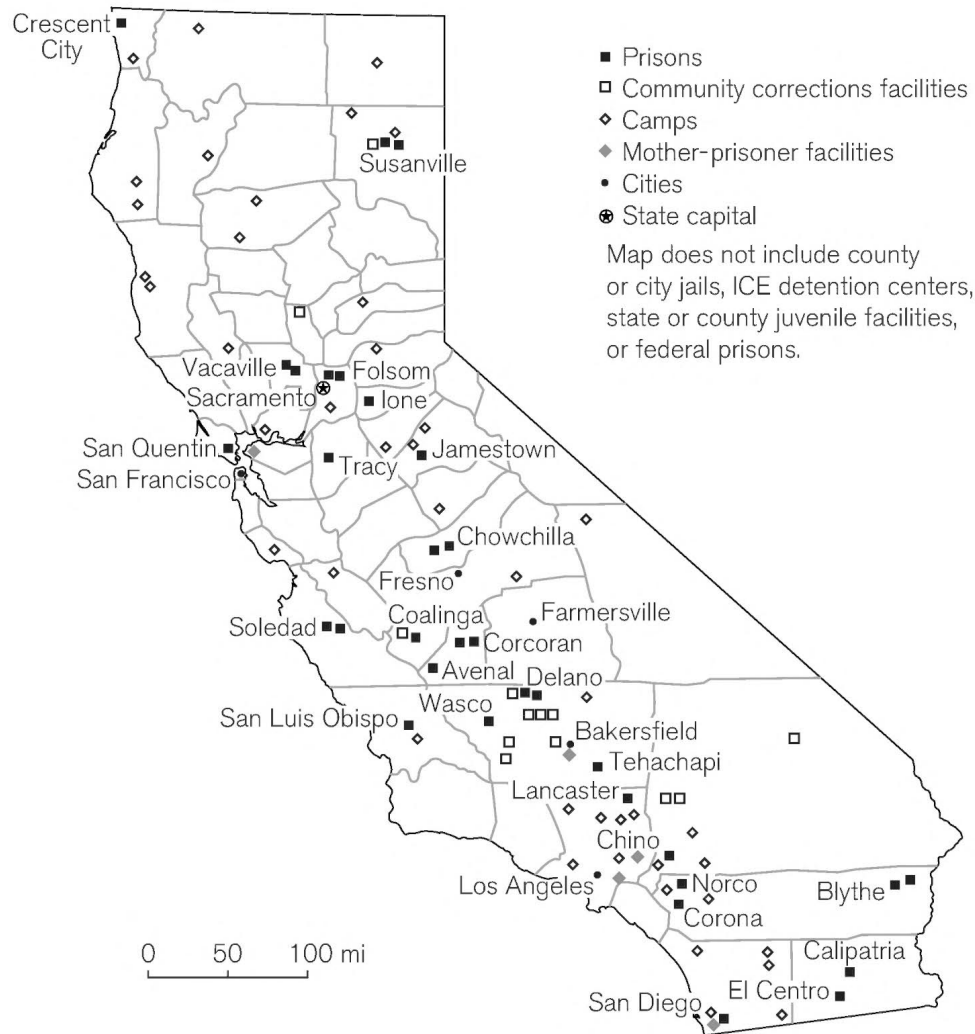
- The California Crime Index rate decreased 7.0 percent.
- The violent crime rate decreased 4.2 percent.
- The property crime rate decreased 8.3 percent.

FIGURE 1. California crime index by category, 1952–1995. Source: California Department of Justice, Criminal Justice Information Services Division.

ber of state lockups for adult men and women to ninety.¹ With the exception of a few privately managed 500-bed facilities, these prisons are wholly public: owned by the state of California, financed by Public Works Board debt, and operated by the California Department of Corrections. The state's general fund provides 100 percent of the entire prison system's annual costs. Expenses spiked from 2 percent of the general fund in 1982 to nearly 8 percent



FIGURE 2. Revised California crime index, 1952–2000. Source: California Department of Justice, Criminal Justice Information Services Division. *Note:* Throughout its development, this book used the nationally accepted method for measuring crime, as illustrated by figure 1, which shows the state attorney general’s 1995 California crime index. In 2003, “to give a more representative depiction of crime in California,” a different California attorney general added “larceny-theft over \$400” to the California crime index, retroactive to 1983. Whatever the latter’s motivations, the effect as shown above has been to muddy the waters concerning when the crime rate began to decline in California and, as a consequence, what role increasing the numbers of prisons and people locked up in them has played. Subsequent to this revision, the “California Crime Index has been temporarily suspended as efforts continue to redefine this measurement.” Data and quotations from *Crimes, 1952–2003*, table 1, Criminal Justice Statistics Center, Office of the Attorney General, <http://caag.state.ca.us/cjsc/publications/candd/cdo3/tabs/> (January 23, 2005).



California state adult prisons. Adapted from a map by Craig Gilmore.

today. The Department of Corrections has become the largest state agency, employing a heterogeneous workforce of 54,000.

These alarming facts raise many urgent issues involving money, income, jobs, race and ethnicity, gender, lawmaking, state agencies and the policies that propel them to act, rural communities, urban neighborhoods, uneven development, migration and globalization, hope, and despair. Such breadth belies the common

view that prisons sit on the edge—at the margins of social spaces, economic regions, political territories, and fights for rights. This apparent marginality is a trick of perspective, because, as every geographer knows, edges are also interfaces. For example, even while borders highlight the distinction between places, they also connect places into relationships with each other and with non-contiguous places. So too with prisons: the government-organized and -funded dispersal of marginalized people from urban to rural locations suggests both that problems stretch across space in a connected way and that arenas for activism are less segregated than they seem. Viewed in this way, we can see how “prison” is actually in the middle of the muddle that confronts all modestly educated working people and their extended communities—the global supermajority—at the dawn of the twenty-first century.

WHAT IS PRISON SUPPOSED TO DO AND WHY?

The practice of putting people in cages for part or all of their lives is a central feature in the development of secular states, participatory democracy, individual rights, and contemporary notions of freedom. These institutions of modernity, shaped by the rapid growth of cities and industrial production, faced a challenge—most acutely where capitalism flourished unfettered—to produce stability from “the accumulation and useful administration” of people on the move in a “society of strangers” (Foucault 1977: 303). Prisons both depersonalized social control, so that it could be bureaucratically managed across time and space, and satisfied the demands of reformers who largely prevailed against bodily punishment, which nevertheless endures in the death penalty and many torturous conditions of confinement. Oddly enough,

then, the rise of prisons is coupled with two major upheavals—the rise of the word *freedom* to stand in for what’s desirable and the rise of civic activists to stand up for who’s dispossessed.

The relationship of prison to dispossession has been well studied. Wedged between ethics and the law, the justification for putting people behind bars rests on the premise that as a consequence of certain actions, some people should lose all freedom (which we can define in this instance as control over one’s bodily habits, pastimes, relationships, and mobility). It takes muscular political capacity to realize widescale dispossession of people who have formal rights, and historically those who fill prisons have collectively lacked political clout commensurate with the theoretical power that rights suggest (see, e.g., Dayan 1999). In contrast, during most of the modern history of prisons, those officially devoid of rights—indigenous and enslaved women and men, for example, or new immigrants, or married white women—rarely saw the inside of a cage, because their unfreedom was guaranteed by other means (Christianson 1998; E. B. Freedman 1996).

But what about crime? Doesn’t prison exist because there are criminals? Yes and no. While common sense suggests a natural connection between “crime” and “prison,” what counts as crime in fact changes, and what happens to people convicted of crimes does not, in all times and places, result in prison sentences. Defined in the simple terms of the secular state, crime means a violation of the law. Laws change, depending on what, in a social order, counts as stability, and who, in a social order, needs to be controlled. Let’s look at a range of examples. After the Civil War, an onslaught of legal maneuvers designed to guarantee the cheap availability of southern Black people’s labor outlawed both “moving around” and “standing still” (Franklin 1998), and con-

victs worked without choice or compensation to build the region's infrastructure and industrial system (A. Lichtenstein 1996; B. M. Wilson 2000a). From the 1890s onward, a rush of Jim Crow laws both fed on earlier labor-focused statutes and sparked the nationwide apartheid craze. The Eighteenth Amendment to the Constitution (1919) prohibited the manufacture, import, export, or sale of intoxicating liquors, at a time when most drugs that are now illegal were not (Lusane 1991). In Texas, driving while drinking alcohol is legal, whereas a marijuana seed can put a person in prison for life. Prostitution is legal in some places. In others, the remedy for theft is restitution, not a cage. Murder is the result of opportunity, motive, and means, and the fact of a killing begins rather than ends an inquiry into the shifting legal nature of such a loss. Numerous histories and criminological treatises show shifts over time in what crime is and why it matters (see, e.g., Linebaugh 1992; Christianson 1998). Contemporary comparative studies demonstrate how societies that are relatively similar—industrialized, diverse, largely immigrant—differ widely in their assessments and experience of disorderly behavior and the remedies for what's generally accepted as wrong (Archer and Gartner 1984). As we can see that crime is not fixed, it follows that crime's relationship to prisons is the outcome of social theory and practice, rather than the only possible source of stability through control.

How are prisons supposed to produce stability through controlling what counts as crime? Four theories condense two and a quarter centuries of experience into conflicting and generally overlapping explanations for why societies decide they should lock people out by locking them in. Each theory, which has its intellectuals, practitioners, and critics, turns on one of four key con-

cepts: retribution, deterrence, rehabilitation, or incapacitation. Let's take them in turn. The shock of retribution—loss of liberty—supposedly keeps convicted persons from doing again, upon release, what sent them to prison. Retribution's specter, deterrence, allegedly dissuades people who can project themselves into a convicted person's jumpsuit from doing what might result in lost liberty. Rehabilitation proposes that the unfreedom of prisons provides an occasion for the acquisition of sobriety and skills, so that, on release, formerly incarcerated people can live lives away from the criminal dragnet. And, finally, incapacitation, the least ambitious of all these theories, simply calculates that those locked up cannot make trouble outside of prison. These theories relate to each other as reforms—not as steps away from brutality or inconsistency, but as attempts to make prisons produce social stability through applying some mix of care, indifference, compulsory training, and cruelty to people in cages.

If the fourth concept, incapacitation, is not ambitious in a behavioral or psychological sense, it is, ironically, the theory that undergirds the most ambitious prison-building project in the history of the world. Incapacitation doesn't pretend to change anything about people except where they are. It is in a simple-minded way, then, a geographical solution that purports to solve social problems by extensively and repeatedly removing people from disordered, deindustrialized milieus and depositing them somewhere else.

But does the absence of freedom for many ensure stability in the form of lower-crime communities, and idled courts and police officers, for others? We can hazard a quick guess by asking a different question: would the prevailing theories shift and mingle over time, persistently reforming reformed reforms, if

the outcome were stability? Probably not. And now there's more to be said on the subject, since we can count and compare outcomes. State by state, those jurisdictions that have not built a lot of prisons and thrown more people into them have enjoyed greater decreases in crime than states where incapacitation became a central governmental activity. For the latter, there are similar patterns of contrariness: within California, counties that aggressively use mandatory sentencing, such as the notoriously harsh "three strikes" law, have experienced feebler decreases in crime than counties that use the law sparingly.

Here we must briefly digress and reflect further on prison demographics, in particular, their exclusive domination of working or workless poor, most of whom are not white. Since it has never before been so easy for people of color to get into prison (jail is another matter [Irwin 1985]), we have to ask how racism works to lock in both them and more poor white people as well. To what degree has the regular observer, of any race, learned both willfully and unconsciously to conclude that the actual people who go to prison are the same as those the abolitionist Ruth Morris called the "terrible few." The "terrible few" are a statistically insignificant and socially unpredictable handful of the planet's humans whose psychopathic actions are the stuff of folktales, tabloids (including the evening news and reality television), and emergency legislation. When it comes to crime and prisons, the few whose difference might horribly erupt stand in for the many whose difference is emblazoned on surfaces of skin, documents, and maps—color, credo, citizenship, communities, convictions. The paroxysmal thinking required to make such a substitution is the outcome of many prods and barbs, in which aggression, violence, order, and duty conflate into an alleged force of Ameri-

can “human nature” (Lutz 2001). This thinking reveals the imaginary relationships people have with neighbors recast as strangers in a thoroughly racialized and income-stratified political economy that regularly redefines possibilities while never setting absolute positive or negative limits.

With the vexing question of difference in mind, let's return to the problem of spatial unevenness. If places that spare the cage are calmer than places that use imprisonment more aggressively, why is this so? Why wouldn't higher rates of incapacitation produce more stability? As it turns out, if we ratchet our perspective down to an extremely intimate view and compare, we see that identical locations—in terms of the social, cultural, and economic characteristics of inhabitants—diverge over time into different qualities of place when one of them experiences high rates of imprisonment of residents. And, more, the “tipping point,” when things start to get really bad, is not very deep. Only two or three need be removed from N to produce greater *instability* in a community of people who, when employed, make, move, or care for things (Clear et al. 2001; Rose and Clear 2002). Why? For one thing, households stretch from neighborhood to visiting room to courtroom, with a consequent thinning of financial and emotional resources (Comfort 2002). Looking around the block at all the homes, research shows that increased use of policing and state intervention in everyday problems hasten the demise of the informal customary relationships that social calm depends on (Clear et al. 2001). People stop looking out for each other and stop talking about anything that matters in terms of neighborly well-being. Cages induce or worsen mental illness in prisoners (Haney 2001; Kupers 1999), most of whom eventually come out to service-starved streets. Laws (such as lifetime bans from financial

aid) and fiscal constraints displacing dollars from social investment to social expense (O'Connor [1973] 2000) lock former prisoners out of education, employment, housing, and many other stabilizing institutions of everyday life. In such inhospitable places, everybody isolates. And when something disruptive, confusing, or undesirable happens, people dial 911. As a result, crime goes up, along with unhappiness, and those who are able to do so move away in search of a better environment, concentrating unhappiness in their wake. In other words, prisons wear out places by wearing out people, irrespective of whether they have done time (Mauer and Chesney-Lind 2002).

This book asks how prison came to be such a widescale solution in late twentieth-century California, in part by looking at the problem through two extraordinary lenses. It asks what the relationship is between urban and rural political and economic restructuring, and how urban social expense fits into the rural landscape. It also asks what happens in the urban neighborhoods prisoners come from when people start talking to each other again.

THE DOMINANT AND COUNTEREXPLANATIONS FOR PRISON GROWTH

In its briefest form, the dominant explanation for prison growth goes like this: crime went up; we cracked down; crime came down.

Is this true?

The media, government officials, and policy advisers endlessly refer to “the public’s concern” over crime and connect prison growth to public desire for social order. In this explanation, what is pivotal is not the state’s definition of crime per se but

rather society's condemnation of rampant deviant behavior—thus a moral, not (necessarily) legal, panic. The catapulting of crime to public anxiety number one, even when unemployment and inflation might have garnered greater worry in the recessions of the early 1980s and the early 1990s, suggests that concerns about social deviance overshadowed other, possibly more immediate, issues.

However, by the time the great prison roundups began, crime had started to go down. Mainstream media widely reported the results of statistics annually gathered and published by the FBI, the Bureau of Justice Statistics (BJS), and state attorneys general. In other words, if the public had indeed demanded crime reduction, the public was already getting what it wanted. California officials could have taken credit for decreasing crime rates without producing more than 140,000 new prison beds (more than a million nationally).

Another explanation for the burgeoning prison population is the drug epidemic and the presumed threat to public safety posed by the unrestrained use and trade of illegal substances. Information about the controlling (or most serious) offense of prisoners seems to support the drug explanation: drug commitments to federal and state prison systems surged 975 percent between 1982 and 1999. Therefore, it is reasonable to conclude that the widening use of drugs in the late 1970s and early 1980s provoked prison expansion. According to this scenario—as news stories, sensational television programs, popular music and movies, and politicians' anecdotes made abundantly clear—communities, especially poor communities of color, would be more deeply decimated by addiction, drug dealing, and gang violence were it not for the restraining force of prisons. The explanation rests on two

assumptions: first, that drug use exploded in the 1980s; and second, that the sometimes violent organization of city neighborhoods into gang enclaves was accomplished in order to secure drug markets.

In fact, according to the BJS, illegal drug use among all kinds of people throughout the United States declined drastically starting in the mid 1970s (Tonry 1995). Second, although large-scale traffic in legal or illegal goods requires highly organized distribution systems—whether corporations or gangs (Winslow 1999)—not all gangs are in drug trafficking. For example, according to Mike Davis (1990), in late 1980s Los Angeles, despite the availability of stiffer sentences for gang members, prosecutors charged only one in four dealers with gang membership, and that pattern continued through the 1990s, despite media reports to the contrary.

A third explanation blames structural changes in employment opportunities; these changes have left large numbers of people challenged to find new income sources, and many have turned to what one pundit called illegal entitlements. In this view, those who commit property crimes—along with those who trade in illegal substances—reasonably account for a substantial portion of the vast increase in prison populations. Controlling offense data for new prisoners support the income-supplementing explanation: the percentage of people in prison for property offenses has more than doubled since 1982. But at the same time, incidents of property crime peaked in 1980; indeed, the drop in property crime pushed down the overall crime rate.

Throughout the economic boom of the 1990s, both print and electronic media again headlined annual federal reports about long-term drops in crime (falling since 1980), and elected and ap-

pointed officials took credit for the trends. In this context, the explanation for bulging prisons centers on the remarkable array of stiffer mandatory sentences now doled out for a wide range of behavior that used to be differently punished, if at all. This explanation, tied to but different from the moral panic explanation, proposes that while social deviance might not have exploded after all, aggressive intolerance pays handsome political dividends. The explanation that new kinds of sentences—which is to say the concerted action of lawmakers—rather than crises in the streets produced the growth in prison is after the fact and begs the question: Why prisons now?

Indeed, the preceding series of explanations and their underlying weaknesses suggest that the simple relationship between “crime” and “crackdown” introducing this section should be tweaked in the interest of historical accuracy. The string of declarative statements more properly reads: “crime went up; crime came down; we cracked down.” If the order is different, then so are the causes. Here, of course, is where the prevailing alternative explanations come in. These views, like the official stories, are not mutually exclusive.

A key set of arguments charges racial cleansing: prisons grow in order to get rid of people of color, especially young Black men, accomplishing the goal through new lawmaking, patterns of policing, and selective prosecution (see, for examples, Miller 1996; Mauer 1999; Goldberg 2002). These analysts prove their claims using two decades of numbers showing the “racial disparities” in flesh-and-blood facts of prison expansion, substantial for white people and off the charts for nearly everybody else. There’s no doubt what the accumulated experience is. But why now? Among many who charge racism, folk wisdom, a product

of mixing the Thirteenth Amendment with thin evidence, is that prison constitutes the new slavery and that the millions in cages are there to provide cheap labor for corporations looking to lower stateside production costs.

The problem with the “new slavery” argument is that very few prisoners work for anybody while they’re locked up. Recall, the generally accepted goal for prisons has been *incapacitation*: a do-nothing theory if ever there was one. There has certainly been enough time for public and private entities to have worked out the logistics of exploiting unfree labor, and virtually every state, including California, has a law requiring prisoners to work. But the fact that most prisoners are idle, and that those who work do so for a public agency, undermines the view that today’s prison expansion is the story of nineteenth-century Alabama writ large (A. Lichtenstein 1996; B. M. Wilson 2000a). The principal reason private interests fail to exploit prisoner labor seems to be this: big firms can afford to set up satellite work areas (what a prison-based production facility would be), while small firms cannot. Small firms then fight against big firms over unfair access to cheap labor and fight as well against publicly owned and operated prison industries (such as the federal system called UNICOR) that, due to low wages (not the same as low labor costs), unfairly compete in markets selling things modestly educated people can make and do.

Two other counterexplanations focus on the pursuit of profits. The first places emphasis on the privatization of public functions. Although the absolute number of private prisons has indeed grown, the fact is that 95 percent of all prisons and jails are publicly owned and operated. So the argument that more people are in prison due to the lobbying efforts of private prison firms doesn’t

stand up to scrutiny. The firms are not insignificant, especially in some jurisdictions, but they're not the driving force, either. Despite boosterish claims by stock analysts, private prison firms consistently hover on the brink of disaster (Greene 2001; Matera and Khan 2001), while public sector unions fight against losing jobs with good pay and benefits. The final profit-centered explanation focuses more generally on the potential for pulling surplus cash out of prisons (Dyer 1999). The question remains as to how these changes came into effect, given the welter of laws and rules directing the uses of capital for public investments. In other words, what does the fact that the world has gone capitalist in the past decade and a half (see, e.g., Parenti 1999) mean; and what are the conditions under which other possibilities might unfold? In particular, how has the role of the state—at various levels, from urban growth machine to federal devolution machine—changed in the attempt to produce stability and growth in the general political economy, especially if equity is no longer on the agenda?

The preceding discussion leads us to the third view, which holds that there are more people in prison in order for “the state” to help rural areas hungry for jobs; in this explanation of prison expansion, prisoners of color presumably provide employment opportunities for white guards. There's no question that rural America has been in the throes of a depression that began decades ago. In the 1980s and early 1990s, a welter of scholarly and trade articles (e.g., Carlson 1988, 1992; Sechrest 1992; Shichor 1992) promoted the local development discourse and advised prison agencies and civic boosters how to dispel fears and thereby disarm the NIMBY (not in my back yard) attitude. Such work reinforced the suspicion that prison expansion is a concrete manifestation of urban-rural competition and conflict. How-

ever, we now know the fiscal benefits to prison towns are difficult if impossible to locate (Hooks et al. 2003; Farrigan and Glasmeier 2002; R. W. Gilmore 1998; Huling 2002; King et al. 2003). But where are the new prisons? Are the host communities and the places prisoners come from so different? What about the demographic continuities between employees and the prisoners themselves? Indeed, what already existing relationships make a town eligible for, or vulnerable to, prison siting in the first place? And why doesn't investment stick there?

A fourth counterexplanation is one we might call the reform school. Analysts from a variety of political perspectives examine more than two centuries of interlocking prison and legal reforms and ask what role activists of many kinds—such as benevolent liberals or women fighting domestic and sexual violence—play, first in normalizing prison and then enabling its perpetually expanding use as an all-purpose remedy for the thwarted rights of both prisoners and harmed free persons (see, for examples, Gottschalk 2002; A. Davis 2003; Critical Resistance–INCITE 2002). This view demands consideration of how political identities defined by injury (Brown 1994) and order derived from punishment (Garland 1990, 2002) shape state norms and practices. Through formal interaction with the state (as girl, student, citizen, immigrant, retiree, worker, owner, so forth), people develop and modulate their expectations about what the state should do, and these understandings, promoted or abhorred by media, intellectuals, and others, guide how, and under what conditions, social fixes come into being. The state makes things, but it is also a product of what's made and destroyed—of the constant creation and destruction of things such as schools, hospitals, art museums, nuclear weapons, and prisons. These issues return us to

the question of why the state changes. How do we understand such change through the development or revision of governmental institutions? Before concluding this introduction to the problem, let's look quickly at a key historical moment of the twentieth century: 1968.

LOOKING BACKWARD TO LOOK FORWARD

The preceding brief review of counterexplanations for prison growth does not account for the order of things: crime went up; crime came down; we cracked down. But of course, as every explanation suggests, something big, which proponents of “crime is the problem; prison is the solution” could be part of, directed the action. A conspiracy? Not likely. Systemic? Without a doubt. All the elements are here. Let's look back for a moment to 1968, symbolically *the* year of revolution and counterrevolution, to get one more take on the picture.

Nineteen sixty-eight was a disorderly year, when revolutionaries around the world made as much trouble as possible in as many places as possible. Overlapping communities of resistance self-consciously connected their struggles. Growing opposition to the U.S. war in Vietnam and Southeast Asia linked up with anticolonialism and antiapartheid forces on a world scale; and many found in Black Power a compelling invigoration of historical linkages between “First” and “Third” world liberation, not unlike the way people today trying to make sense of antiglobalization look to the Zapatistas in Chiapas (see, e.g., Katzenberger 1995). Students and workers built and defended barricades from Mexico City to Paris, sat down in factories, and walked out of fields. The more militant anticapitalism and international solidarity became everyday features of U.S. antiracist activism, the

more vehemently the state responded by, as Allen Feldman (1991) puts it, “individualizing disorder” into singular instances of criminality.

The years 1967–68 also marked the end of a long run-up in annual increases in profit, signaling the close of the golden age of U.S. capitalism. The golden age had started thirty years earlier, when Washington began the massive buildup for World War II. The organizational structures and fiscal authority that had been designed for New Deal social welfare agencies provided the template for the Pentagon’s painstaking transformation (Gregory Hooks 1991). It changed from a periodically expanded and contracted Department of War to the largest and most costly bureaucracy of the federal government. The United States has since committed enormous resources to the first permanent warfare apparatus in the country’s pugnacious history.

The wealth produced from warfare spending did two things: it helped knit the nation’s vast marginal hinterland (the South and the West) into the national economy by moving vast quantities of publicly funded construction and development projects, and people to do the work, to those regions (with California gaining the most) (Schulman 1994). The wealth also underwrote the motley welfare agencies that took form during the Great Depression but did not become truly operational until the end of World War II (Gregory Hooks 1991). Indeed, the U.S. welfare state has been dubbed “military Keynesianism”—an unpronounceable name but a good thing to know—to denote the centrality of war-making to socioeconomic security. On the domestic front, while labor achieved moderate protections against calamity and opportunities for advancement, worker militancy was crushed and U.S. hierarchies achieved renewed

structural salience. The hierarchies mapped both the organization of labor markets and the sociospatial control of wealth. Thus, white people fared well compared with people of color, most of whom were deliberately, if craftily, excluded from the original legislation; men received automatically what women had to apply for individually; and urban industrial workers secured limited wage and bargaining rights denied household and agricultural fieldworkers.

This quick look at the crumbling foundations of the old order, which gave way to the possibility of astonishing prison growth, raises the urgent topics that this book addresses: money, income, jobs, race and ethnicity, gender, lawmaking, state agencies and the policies that propel them to act, rural communities, urban neighborhoods, uneven development, migration and globalization, hope, and despair. Today's political-economic superstructure is grounded in the radical failures and counterrevolutionary successes of an earlier era, as exemplified by the antagonism between insurgents and counterinsurgents in 1968.

HOW TO USE THIS BOOK

How and why, then, did California go about the biggest prison-building project in the history of the world? In my view, prisons are partial geographical solutions to political economic crises, organized by the state, which is itself in crisis. Crisis means instability that can be fixed only through radical measures, which include developing new relationships and new or renovated institutions out of what already exists. The instability that characterized the end of the golden age of American capitalism provides a key, as we shall see. In the following pages, we shall investigate how certain kinds of people, land, capital, and state

capacity became idle—what surplus is—what happened, and why the outcomes are logically explicable but were by no means inevitable.

A few words about scholar activism, and then our tale begins. Happily, the Social Science Research Council has taken an interest in what scholar activism is and does, and a group of us are writing a book about it. For readers of the present book, the key point is this: the questions and analyses driving this book came from the work encountered in everyday activism “on the ground.” However, the direction of research does not necessarily follow every lead proposed from the grassroots, nor do the findings necessarily reinforce community activists’ closely held hunches about how the world works. On the contrary, in scholarly research, answers are only as good as the further questions they provoke, while for activists, answers are as good as the tactics they make possible. Where scholarship and activism overlap is in the area of how to make decisions about what comes next. As this project grew from a modest research inquiry into a decade’s lifework, so too did the need to figure out a guide for action.

We simultaneously make places, things, and selves, although not under conditions of our own choosing. Problems, then, are also opportunities. The world does not operate according to an analytically indefensible opposition that presumes that “agency” is an exclusive, if underused, attribute of the oppressed in their endless confrontation with the forces of “structure.” Rather, if agency is the human ability to craft opportunity from the withal of everyday life, then agency and structure are products of each other. Without their mutual interaction, there would be no drama, no dynamic, no story to tell. Actors in all kinds of situations (farms, neighborhoods, government agencies, collapsing

economies, tough elections) are fighting to create stability out of instability. In a crisis, the old order does not simply blow away, and every struggle is carried out within, and against, already existing institutions: electoral politics, the international capitalist system, families, uneven development, racism.

As the example of racism suggests, institutions are sets of hierarchical relationships (structures) that persist across time (Martinot 2003) undergoing, as we have seen in the case of prisons, periodic reform. Racism, specifically, is the state-sanctioned or extralegal production and exploitation of group-differentiated vulnerability to premature death. States are institutions made up of subinstitutions that often work at cross-purposes, but that get direction from the prevailing platforms and priorities of the current government. Capital, the wealth of the profit system's development ability, is also a relation, since it could not exist if workers did not produce goods for less than they're sold for and buy goods in order to go back to work and make, move, or grow more stuff. As private property, land is also a relationship—to nonowners, to other pieces of land, to mortgagers, and to land that is not privately owned. And the state's power to organize these various factors of production, or enable them to be disorganized or abandoned outright, is not a thing but rather a capacity—which is to say, based in relationships that also change over time and sometimes become so persistently challenged, from above and below, by those whose opinions and actions matter, that the entire character of the state eventually changes as well.

This book is about enormous changes and alternative outcomes. It pauses at many different points both to show how resolutions of surplus land, capital, labor, and state capacity congealed into prisons, and also to suggest—and in the last chapters

to argue—how alternative uses of the resources of everyday life might otherwise have been organized. It is thus a book for everybody who is fighting against racism, old or new, for fair wages, and especially for the social wage (in sum, for human rights). The conclusion proposes ten theses for activists who seek to craft policies to build the capacity—the *power*—that propels social change organizations, which are the backbone of social movements (Horton and Freire 1990).

TWO

THE CALIFORNIA POLITICAL ECONOMY

Fifth- or sixth-largest among the world's economies, California passed the trillion dollar gross state product mark in 1997, a level nominally equal to U.S. domestic product in 1970. However, the wealthy and productive state's poverty rate rose in the national rankings, from thirtieth in 1980 to fourteenth in 2001. Relative poverty, which compares incomes within states, also snared more households, pushing California into the company of historically poor states such as Louisiana, New Mexico, Mississippi, West Virginia, and Kentucky; with populous New York and Texas, where prisons have also expanded significantly; and with the classically bifurcated District of Columbia, which has both the highest per capita income and highest poverty in the country (Reed 2002). What happened?

GROWTH

California's diversity has always been its strength and challenge. Those who fashioned the Golden State's dominant political, eco-